



apartmentcorp

Employee Handbook

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Welcome

Welcome to Apartment Corp

On behalf of Apartment Corp, we extend a warm welcome. We hope that you will take pride in your employment with us, and enjoy being a member of the Apartment Corp team.

Our employees are our most valuable resource and we are glad to have you on board. Apartment Corp will use its best efforts to assist you in achieving a productive and rewarding employment experience. As we all work together to create the best working environment possible, please let us know if there is anything we can do to make your experience here more productive. Suggestions are always welcome.

Handbook

This handbook has been prepared to inform new employees of the policies and procedures of this company and to establish the company's expectations. It is not all-inclusive or intended to provide strict interpretations of our policies; rather, it offers an overview of the work environment. This handbook is not a contract, expressed or implied, guaranteeing employment for any length of time, and is not intended to induce an employee to accept employment with the company.

The company reserves the right to unilaterally revise, suspend, revoke, terminate or change any of its policies, in whole or in part, whether described within this handbook or elsewhere, in its sole discretion. If any discrepancy between this handbook and current company policy arises, conform to current company policy. Every effort will be made to keep you informed of the company's policies, however we cannot guarantee that notice of revisions will be provided. Feel free to ask questions about any of the information within this handbook.

This handbook supersedes and replaces any and all personnel policies and manuals previously distributed, made available or applicable to employees, unless otherwise noted in specific sections of this handbook which refer to additional forms. This handbook may be revised at any time, in which the company will require the employee to resign the updated book.

At – Will Employment

Employment at this company is at-will. An at-will employment relationship can be terminated at any time, with or without reason or notice by either the employer or the employee. The at-will employment status of each employee cannot be altered by a verbal statement or alleged verbal agreement of company personnel. It can only be changed by a legally binding, written contract covering employment status. An example of this would be a written employment agreement for a specific duration of time.

Workplace Commitments

Equal Opportunity Employment (EEO)

Apartment Corp provides equal employment opportunities (EEO) to all employees and applicants for employment without regard to race, color, religion, sex, national origin, age, disability or genetics. In addition to federal law requirements, Apartment Corp complies with applicable state and local laws governing nondiscrimination in employment in every location in which the company has facilities. This policy applies to all terms and conditions of employment, including recruiting, hiring, placement, promotion, termination, layoff, recall, transfer, leaves of absence, compensation and training.

Apartment Corp expressly prohibits any form of workplace harassment based on race, color, religion, gender, sexual orientation, gender identity or expression, national origin, age, genetic information, disability, or veteran status. Improper interference with the ability of Apartment Corp's employees to perform their job duties may result in discipline up to and including discharge.

Whenever possible, the company makes reasonable accommodations for qualified individuals with disabilities to the extent required by law. Employees who would like to request a reasonable accommodation should contact the president of Apartment Corp.

Non-Harassment Policy / Non-Discrimination Policy

This company prohibits discrimination or harassment based on race, color, religion, creed, sex, national origin, age, disability, marital status, veteran status or any other status protected by applicable law. Each individual has the right to work in a professional atmosphere that promotes equal employment opportunities and is free from discriminatory practices, including, without limitation, harassment. Consistent

with its workplace policy of equal employment opportunity, the company prohibits and will not tolerate harassment on the basis of race, color, religion, creed, sex, national origin, age, disability, marital status, veteran status or any other status protected by applicable law. Violations of this policy will not be tolerated.

Discrimination includes, but is not limited to: making any employment decision or employment-related action on the basis of race, color, religion, creed, age, sex, disability, national origin, marital or veteran status, or any other status protected by applicable law.

Harassment is generally defined as unwelcome verbal or non-verbal conduct, based upon a person's protected characteristic, that denigrates or shows hostility or aversion toward the person because of the characteristic, and which affects the person's employment opportunities or benefits, has the purpose or effect of unreasonably interfering with the person's work performance, or has the purpose or effect of creating an intimidating, hostile or offensive working environment. Harassing conduct includes, but is not limited to: epithets; slurs or negative stereotyping; threatening, intimidating or hostile acts; or denigrating jokes and display or circulation in the workplace of written or graphic material that denigrates or shows hostility or aversion toward an individual or group based on their protected characteristic.

Sexual harassment is defined as unwelcome sexual advances, requests for sexual favors and other verbal, visual or physical conduct of a sexual nature, when:

- submission to such conduct is made either explicitly or implicitly a term or condition of an individual's employment;
- submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting such individual; or
- such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile or offensive working environment.

Examples of sexual harassment include: unwelcome or unsolicited sexual advances; displaying sexually suggestive material; unwelcome sexual flirtations, advances or propositions; suggestive comments; verbal abuse of a sexual nature; sexually-oriented jokes; crude or vulgar language or gestures; graphic or verbal commentaries about an individual's body; display or distribution of obscene materials; physical contact such as patting, pinching or brushing against someone's body; or physical assault of a sexual nature.

Complaint Procedure:

Any company employee who feels that he or she has been harassed or discriminated against, or has witnessed or become aware of discrimination or harassment in violation of these policies, should bring the matter to the immediate attention of his or her supervisor, or next in command. The company will promptly investigate all allegations of discrimination and harassment, and take action as

appropriate based on the outcome of the investigation. An investigation and its results will be treated as confidential to the extent feasible and permitted by law, and the company will take appropriate action based on the outcome of the investigation.

No employee will be retaliated against for making a complaint in good faith regarding a violation of these policies, or for participating in good faith in an investigation pursuant to these policies. If an employee feels he/she has been retaliated against, the employee should file a complaint using the procedures set forth above.

Drug-Free / Alcohol-Free Environment

Employees are prohibited from unlawfully consuming, distributing, possessing, selling, or using controlled substances. In addition, employees may not be under the influence of any controlled substance, such as drugs or alcohol, while at work, on company premises or engaged in company business. Prescription drugs or over-the-counter medications, taken as prescribed, are an exception to this policy.

Anyone violating this policy may be subject to disciplinary action, up to and including termination. Employees may be subject to drug screening upon hiring, or under reasonable suspicion. If an employee is tested for drugs or alcohol outside of the employment context and the results indicate a violation of this policy, or if an employee refuses a request to submit to testing under this policy, the employee may be subject to appropriate disciplinary action, up to and possibly including discharge from employment. In such a case, the employee will be given an opportunity to explain the circumstances prior to any final employment action becoming effective.

Background Checks & Criminal Priors

Employees upon hire are required to submit to a full background check, and to produce all necessary proof of identification. Although we run a federal check on your criminal/credit activity, it may be asked that we also require you to produce background check documents on a state or local municipality level. You are also required upon application and hire to notify us of any ongoing, pending, or closed charges, citations, or cases beyond minor traffic infractions. Failure to notify us of any pending charges upon hire or during any time within employment, whether

expected to be dropped or not, will result in disciplinary action up to immediate termination.

Open Door Policy

The company has an open-door policy and takes employee concerns and problems seriously. The company values each employee and strives to provide a positive work experience. Employees are encouraged to bring any workplace concerns or problems they might have or know about to their supervisor or some other member of management including corporate office or Apartment Corp's Chairman.

Immigration Compliance

The company is committed to complying with federal laws and regulations concerning verification of employment eligibility and record-keeping for employees hired to work in the United States. As a condition of employment, every individual must provide satisfactory evidence of his or her identity and legal authority to work in the United States on his or her first day of employment with the company. Anyone with questions regarding any aspect of employment and/or identity verification should contact the payroll department.

Company Policies & Procedures

Code of Professional Conduct

This company expects its employees to adhere to a standard of professional conduct and integrity. This ensures that the work environment is safe, comfortable and productive. Employees should be respectful, courteous, and mindful of others' feelings and needs. General cooperation between coworkers and supervisors is necessary, and expected. Individuals who act in an unprofessional manner may be subject to disciplinary action.

Dress Code

An employee's personal appearance and hygiene is a reflection on the company's character. Employees are expected to dress appropriately for their individual work responsibilities and position.

Employees working in the property offices must be dressed in a professional manner as if they are, and will be meeting potential tenants daily. This includes Regional Managers, Property Managers, Assistant Managers, Leasing Agents, and all other office staff. Blue jeans, t-shirts with writing, apparel with visible logo or graphics, or workout/gym clothes are not permitted. Visible tattoos or piercings that are completed after date of employment may be cause for termination.

Pay Schedule

Paychecks are distributed as follows:

- If you are paid out of the California office, then paychecks are distributed on the 10th and the 25th of the month.
- If you are paid out of our New York office, then paychecks are distributed every other Friday.

If the pay date lands on a weekend or holiday, paychecks will be distributed on the closest business day before the weekend or holiday.

The paycheck will reflect work performed for the 1st-15th and 16th-31st period. Paychecks include salary or wages earned less any mandatory or elected deductions. Mandatory deductions include federal or state withholding tax, and other withholdings. Elected deductions are deductions authorized by the employee, and may include, for example, contributions to benefit plans. Employees may contact the payroll department to obtain the necessary authorization forms for requesting additional deductions from their paychecks.

Notify a supervisor if the paycheck appears to be inaccurate, or if it has been misplaced. The company reserves the right to charge a replacement fee for any lost paychecks. Advances on paychecks are not permitted. Information regarding final paychecks can be found under the termination section of this handbook.

Recording of Time/Use of Time Rack

In order to be properly compensated for hours worked during a pay period, hours need to be documented on Time Rack, a smart phone app the company uses to record each employee's working time & clock in/out schedule. At the beginning of each shift, employees will need to clock in, and at the end of each shift employees will need to clock out of TimeRack. If you forget to clock in or out, it may delay your pay. You are responsible for filling out missing punch forms, or making sure your supervisor submits your missing punch forms to home office. Failure to do so will result in a loss of pay.

GeoTrack Policy

My Geo Tracking improves operational oversight and allows for streamlined communication between employees. All employees are required to fill out an “Apartment Corp My Geo Tracking Agent” consent form. Employees that are required to be on the GeoTrack system are responsible for the effective use of this program on their smartphones. Employees on GeoTrack will be monitored during their entire shift from 8AM-6PM whether on or off the property, or as stated differently by their specific shift time, or while on sick leave or overtime.

Additional policies and requirements for the GeoTrack policy are outlined in additional forms.

Smartphone Requirement

All employees are required to have a cell phone on their persons at all times. Smartphones are required to run the necessary software used by this company. You must have a working iPhone 6 or greater, or Android 6.0 or greater, with the cellular/data/location plan on at all times while working. Your network plan must be reliable in your area. These system version requirements will change as newer versions of the operation system upgrade over time. You may be required to buy a new phone or upgrade your phone as software becomes outdated. Your phone battery must also exceed 2700 mAh, and must carry sufficient battery power throughout the day to perform all duties including updating GeoTrack location, or using company software.

Company Property

Company property, such as equipment, vehicles, telephones, computers, and software, is not for private use. These devices are to be used strictly for company business, and are not permitted off grounds unless authorized. Company property must be used in the manner for which it was intended. Upon termination, employees are required to surrender any company property they possess.

Company computers, Internet and e-mails are a privileged resource, and must be used only to complete essential job-related functions. Employees are not permitted to download any “pirated” software, files or programs and must receive permission from a supervisor before installing any new software on a company computer. Files or programs stored on company computers may not be copied for personal use.

All equipment sent to the properties/offices will be sent pre-configured unless noted. Under no circumstances are you or any employees authorized to re-configure technological equipment without instruction from home office.

Employees are reminded that they should have no expectation of privacy in their use of company computers or other electronic equipment.

Violations of these policies may result in disciplinary action.

Social Media Policy

To assist employees in making responsible decisions about the use of social media, the company has established these guidelines for appropriate use of social media.

This policy applies to all employees who work for the company. Note that we do check social media accounts. Inappropriate behavior that looks unprofessional on social media may be grounds for termination.

Guidelines

Social Media includes all means of communicating or posting information or content of any sort on the Internet, including to your own or someone else's web log or blog, journal or diary, personal website, social networking or affinity website, web bulletin board or a chat room, whether or not associated or affiliated with the company, as well as any other form of electronic communication. The same principles and guidelines found in the company's policies apply to employees' activities on-line. Ultimately, you are solely responsible for what you post on-line. Keep in mind that any of your conduct that adversely affects your job performance, the performance of fellow employees or otherwise adversely affects customers, suppliers, people who work on behalf of the company or the company's legitimate business interests may result in disciplinary action up to and including termination.

Know and follow the rules

Carefully read this Social Media Policy, the Equal Employment Policy, the Non-Harassment/Non-Discrimination Policy, and the Code of Professional Conduct and ensure your postings are consistent with these policies. Postings that may include maliciously defamatory remarks, unlawful harassment, and threats of violence or similar unlawful conduct will not be tolerated and may subject you to disciplinary action up to and including termination.

Be responsible

We trust and expect you to exercise personal responsibility whenever you participate in social media or other on-line activities. Remember that there can be consequences to your actions in the social media world – both internally, if your comments violate company policies, and with outside individuals and/or entities.

Nevertheless, if you decide to post complaints or criticism, avoid using statements, photographs, video or audio that are maliciously defamatory, that are obscene, that disparage customers, that attack the Company's product, or that might constitute unlawful harassment. Examples of such conduct might include false posts meant to intentionally or maliciously harm someone's reputation or posts that could contribute to a hostile work environment on the basis of race, sex, disability, religion or any other status protected by law or company policy.

Post only appropriate and respectful content

Maintain the confidentiality of the company's trade secrets and private or confidential information. Trade secrets may include information regarding the development of systems, processes, products, know-how and technology.

FTC regulations require persons with a material interest to disclose their association with a company if they give a testimonial or other product endorsement. Do not give a product testimonial, endorse the Company's product, or otherwise publicize or promote the Company in any way without identifying yourself as a company employee.

Never represent yourself as a spokesperson for the company. If you do publish a blog or post on-line related to the work you do or subjects associated with the company, make it clear that you are not speaking on behalf of the company. It is best to include a disclaimer such as "The postings on this site are my own and do not necessarily reflect the views of [the company]."

Using social media at work

Employees are forbidden from using social media while on work time, unless it is work-related as authorized by a manager. To help reduce spam and other unwanted e-mail traffic, employees should never use company e-mail addresses to register on social networks, blogs or other on-line tools utilized for personal use. Please use your own individual or private e-mail address. If you are caught engaging in personal social media and personal internet use while working, you may be subject to disciplinary action.

Personnel Files

The company maintains a personnel file on each employee. These files are kept confidential to the extent possible.

It is important that personnel files accurately reflect each employee's personal information. Employees are expected to immediately inform the company of any change in name, address, home phone number, home address, marital status, number of dependents, or emergency contact information. The company has the right to request copies of personal documents for updated information at any time.

Employment Classification

This company assigns positions, determines wages and compensates employees for overtime in accordance with state and local laws and the Fair Labor Standards Act.

Exempt Employees (Full-Time/Salaried)

Exempt employees are those that are excluded from the overtime pay requirements of the Fair Labor Standards Act. Exempt employees are paid a salary, have certain types of job duties, and are expected to work beyond their normal work hours whenever necessary to accomplish the work of the company.

As an exempt employee, your salary is subject to certain deductions. For example, absent contrary state law requirements, your salary can be reduced for the following reasons:

- Full-day absences for personal reasons.
- Full-day absences for sickness or disability.
- Full-day disciplinary suspensions for infractions of the company's written policies and procedures.
- Family and Medical Leave absences (either full- or partial-day absences).
- To offset amounts received as payment for jury and witness fees or military pay.
- The first or last week of employment in the event you work less than a full week.
- Any full work week in which you do not perform any work.

Your salary may also be reduced for certain types of deductions such as your portion of state, federal or local taxes; or Social Security. In any work week in which you performed any work, your salary will not be reduced for any of the following reasons:

- Your absence on a day because your employer has decided to close a facility on a scheduled work day.
- Absences for jury duty, attendance as a witness, or military leave in any week in which you have performed any work.
- Any other deductions prohibited by state or federal law.

Employees should consult with payroll department if they have questions regarding their classification as an exempt employee.

Non-Exempt Employees

Non-exempt employees are those eligible for overtime pay for all hours worked over 40 per work week. Overtime is subject to emergency issues to property, or can be subject to third party organization that oversees our property, such as but not limited to Health and Safety or Housing Authority. **Overtime hours must be requested and approved through the company Help System.** All after hour calls need to be routed to maintenance supervisor or property manager to determine if emergency maintenance request is actually an emergency. Employees should consult with an administrator if they have questions regarding their classification as a non-exempt employee.

Part-Time, Full-Time or Temporary Status

Part-time or full-time status depends on the number of hours per week an employee works. Regular employees who work fewer than 40 hours receive part-time classification. Part-time employees are not eligible for employee benefits as described in this handbook.

From time to time the company may hire employees for specific projects or periods of time. Temporary employees may work either part-time or full-time, but generally are scheduled to terminate by a certain date. Temporary employees who remain on duty past the scheduled termination remain classified as temporary. Only payroll department may change an employee's temporary status. Temporary employees are not eligible for employment benefits.

Attendance Policies

General Attendance

The company maintains normal working hours of 9am-6pm. Hours may vary depending on work location and job responsibilities. Supervisors will provide employees with their work schedule. Should an employee have any questions regarding his/her work schedule, the employee should contact the supervisor.

The company does not tolerate absenteeism without excuse. Employees who will be late or absent from work should notify a supervisor in advance, or as soon as

practicable in the event of an emergency. Chronic absenteeism may result in disciplinary action, up to and including termination.

Employees who need to leave early, for illness or otherwise, should inform a supervisor before departure. Unauthorized departures may result in disciplinary action, up to and including termination.

Tardiness

Employees are expected to arrive on time and ready for work. An employee who arrives 10 minutes after their scheduled arrival time is considered tardy, and must be logged into the system immediately by a supervisor to record tardiness. The company recognizes that situations arise which hinder punctuality; regardless, excessive tardiness is prohibited, and may be subject to disciplinary action, up to and including termination. Managers are expected to record write-ups as seen fit. Employees should not clock in until they are physically at work, regardless if they are tardy or on time.

Breaks

Employees are entitled to a lunch break lasting 30-60 minutes, as agreed upon between employee and supervisor, legal amounts determined by state. Returning back from a break more than 10 minutes late is considered tardy.

For California employees:

If you are a non-exempt worker, you are entitled to a meal and rest breaks: a 30-minute meal break if you work more than 5 hours in a workday, and 10 minutes breaks for every 4 hours you work.

Leave Policies

Paid & Unpaid Time Off

SEE ATTACHED ADDENDUM A

Our employees receive pay structure, paid time off (PTO), unpaid time off, sick days, and all benefits on a per-hire basis. Please refer to your benefits details for more specific information regarding time-off and other benefits as granted on a per-hire basis.

Family and Medical Leave Act Leave

The company offers leave consistent with the requirements of the federal Family and Medical Leave Act (FMLA). Under the FMLA, an employee may be eligible for an unpaid family and medical leave of absence under certain circumstances, if the employee has worked as an employee of the company for at least 1,250 hours for 12 months and works within a seventy-five (75) mile radius of fifty (50) or more company employees.

Reasons for Leave

Employees eligible for FMLA leave may take leave for the following reasons:

- The birth of a child and to care for the newborn child;
- Placement of a child into adoptive or foster care with the employee;
- Care for a spouse, child, or parent who has a serious health condition;
- Care for the employee's own serious health condition;
- Qualifying emergencies arising out of a spouse's, child's, or parent's active duty or call to active duty as a member of the military reserves or National Guard ("Emergency Military Leave"); or
- Care for a spouse, child, parent or next of kin (nearest blood relative) who is (a) an Armed Forces member (including the military reserves and National Guard) undergoing medical treatment, recuperation, therapy, or is otherwise in an outpatient status, or is otherwise on the temporary disability retired list, due to a serious injury or illness incurred or aggravated in the line of duty; or (b) a person who, during the five (5) years prior to the treatment necessitating the leave, served in the active military, Naval, or Air Service, and who was discharged or released under conditions other than dishonorable (a "veteran" as defined by the Department of Veterans Affairs) and who has a serious injury or illness incurred or aggravated in the line of duty while on active duty that arose before or after the member became a veteran ("Military Caregiver Leave").

Length of Leave

With the exception of Military Caregiver Leave, the maximum amount of FMLA Leave will be twelve (12) workweeks in any 12-month period.

If both spouses work for the company and are eligible for FMLA leave, the spouses will be limited to a total of 12 workweeks off between the two of them for leave related to the birth, adoption or foster care of a child, and leave to care for the serious health condition of a family member.

The maximum amount of FMLA Leave for an employee wishing to take Military Caregiver Leave will be a combined leave total of twenty-six (26) workweeks in a single 12-month period.

If both spouses work for the company and are eligible for FMLA leave, the spouses will be limited to a total of 26 workweeks off between the two of them when the leave is for Military Caregiver Leave or a combination of Military Caregiver Leave with another leave category.

Leave may be taken on an intermittent or reduced schedule in certain circumstances. When leave is taken intermittently, the company may transfer the employee to another position with equivalent pay and benefits, which is better suited to periods of absence.

Notice and Certification

If the need for leave is foreseeable, employees should notify a supervisor 30 days prior to taking FMLA leave. If the need for FMLA leave arises unexpectedly, employees should notify a supervisor as soon as practicable, giving as much notice to the company as possible.

Employees requesting FMLA leave may be required to provide: medical certifications supporting the need for leave if the leave is due to a medical condition of the employee or employee's family member; periodic recertification of the medical condition; and periodic reports during the leave regarding the employee's status and intent to return to work. Employees requesting Military Caregiver Leave, are required to provide: as much advance notice as is reasonable and practicable under the circumstances; a copy of the covered military member's active duty orders when the employee requests leave; and a completed Certification of Qualifying Exigency form within 15 calendar days, unless unusual circumstances exist to justify providing the form at a later date.

Certification forms are available from Human Resources. At the company's expense, the company may also require a second or third medical opinion regarding an employee's own serious health condition. Employees are expected to cooperate with the company in obtaining additional medical opinions that the company may require.

Employees are expected to return to work immediately after the completion of the requested FMLA leave, and employees who have taken leave because of their own serious health condition must submit a fitness-for-duty certification before being allowed to return to work.

Use of Paid and Unpaid Leave

Subject to certain conditions, the employee or the company may choose to use accrued paid leave (such as sick leave or vacation leave) concurrent with FMLA leave.

Benefits

The company will maintain group health insurance coverage for an employee on family and medical leave on the same terms as if the employee had continued work. If applicable, arrangements will be made for the employee to pay their share of health insurance premiums while on leave. The company may recover premiums

paid to maintain health coverage for an employee who fails to return to work from family and medical leave.

If an employee would like the company to maintain other paid benefits during the period of leave, premiums and charges which are partially or wholly paid by the employee must continue to be paid by the employee during the leave time.

FMLA leave will not result in the loss of any employment benefit accrued prior to the date on which the leave commenced. However, an employee on FMLA leave does not continue to accrue benefits (e.g., sick leave or vacation leave) during the period of family and medical leave. Questions regarding particular benefits should be directed to payroll department.

Reinstatement

Upon returning from FMLA leave, an employee will be restored to his/her original job or an equivalent job with equivalent benefits, pay, seniority, and other employment terms and conditions, to the extent required by the Family and Medical Leave Act. If an employee fails to return to work at the conclusion of the FMLA leave, and has not obtained an extension of the leave, the company may presume that the employee does not plan to return to work and has voluntarily terminated his or her employment.

Holidays

The company observes the following holidays:

- New Year's Day
- Memorial Day
- Independence Day
- Labor Day
- Thanksgiving (Thursday and Friday)
- Christmas Day

Paid Holidays are only given to full-time, salaried employees. Other religious holidays not listed are subject to paid time off for full-time employees as federal law requires. All other employees including maintenance, hourly, and part-time employees receive these days off unpaid unless otherwise stated in your per-hire employee benefits details. Staff is still expected to respond to emergencies during this time, and any other times during office closures.

Jury Duty Time Off

The company understands that occasionally employees are called to serve on a jury. Employees who are selected for jury duty must provide a copy of their jury summons to a supervisor. If you are called to jury during a particularly busy period of work, you may be asked to request a postponement on jury duty from the court.

Paid/unpaid regulations for time off due to jury duty vary per state, and should be discussed with your supervisor when you receive the summons.

Military Leave

Employees called to active military duty, military reserve or National Guard service may be eligible to receive time off under the Uniformed Services Employment and Reemployment Rights Act of 1994. To receive time off, employees must provide notice and a copy of their report orders to an immediate supervisor. Military leave is granted on a paid basis up to 15 days per year (17 days if employee is in California). Upon return with an honorable discharge, an employee may be entitled to reinstatement and any applicable job benefits they would have received if present, to the extent provided by law.

Leave of Absence

Regular full-time employees may request an unpaid leave of absence after the exhaustion of paid leave. A request for a leave of absence must be submitted in writing in advance to the employee's immediate supervisor.

Leave of absences that are granted are unpaid, and will not be considered until an employee has exhausted all appropriate accrued leave balances. Continuation of employee benefits during a leave of absence will be addressed on an individual basis, as required by law.

Work Performance

Expectations

The company expects every employee to act in a professional manner. Satisfactory performance of job duties and responsibilities is key to this expectation. Employees should attempt to achieve their job objectives, and act with diligence and consideration at all times. Poor job performance can result in disciplinary action, up to and including termination.

Misrepresentation of your qualifications during the hiring process or during employment may result in disciplinary action, up to and including termination. You may be periodically tested on skill level.

Reviews

The company may periodically evaluate an employee's performance. The goal of a performance review is to identify areas where an employee excels and areas that need improvement. The company uses performance reviews as a tool to determine pay increases, promotions and/or terminations.

All performance reviews are based on merit, achievement and other factors that may include, but are not limited to:

- Quality of work
- Attitude
- Knowledge of work
- Job skills
- Attendance and punctuality
- Teamwork and cooperation
- Compliance with company policy
- Past performance reviews
- Improvement
- Acceptance of responsibility and constructive feedback

Employees should note that a performance review does not guarantee a pay increase or promotion. Written performance evaluations may be made at any time to advise employees of unacceptable performance. Evaluations or any subsequent change in employment status, position or pay does not alter the employee's at-will relationship with the company.

Forward any questions about performance expectation or evaluation to the supervisor conducting the evaluation.

Insubordination

Supervisors and employees should interact with mutual respect and common courtesy. Employees are expected to take instruction from supervisors or other persons of authority. Failure to comply with instructions or unreasonably delaying compliance is considered insubordination. Acts of insubordination are subject to disciplinary action, up to and including termination.

If an employee disagrees with a supervisor, the employee should first try to mediate the situation by explaining their position. If possible, a compromise might be met and accusations of insubordination avoided. All employees who are given a direct order, but does not immediately comply, is considered insubordination. There are

instances where punishment for insubordination may be termination, or 2 weeks of unpaid leave.

Discipline Policy

Grounds for Disciplinary Action

The company reserves the right to discipline and/or terminate any employee who violates company policies, practices or rules of conduct. Poor performance and misconduct are also grounds for discipline, up to and including termination.

The following actions are unacceptable and considered grounds for disciplinary action. This list is not comprehensive; rather, it is meant merely as an example of the types of conduct that this company does not tolerate. These actions include, but are not limited to:

- Engaging in acts of discrimination or harassment in the workplace
- Possessing, distributing or being under the influence of illicit controlled substances
- Being under the influence of a controlled substance or alcohol at work, on company premises, or while engaged in company business
- Unauthorized use of company property, equipment, devices or assets
- Damage, destruction or theft of company property, equipment, devices or assets
- Removing company property without prior authorization or disseminating company information without authorization
- Falsification, misrepresentation or omission of information, documents or records;
- lying
- Insubordination or refusal to comply with directives
- Failing to adequately perform job responsibilities
- Excessive or unexcused absenteeism or tardiness
- Disclosing confidential or proprietary company information without permission
- Illegal or violent activity
- Falsifying injury reports or reasons for leave
- Possessing unauthorized weapons on premises
- Disregard for safety and security procedures
- Disparaging or disrespecting supervisors and/or co-workers
- Any other action or conduct that is inconsistent with company policies, procedures, standards or expectations.

This list exhibits the types of actions or events that are subject to disciplinary action. It is not intended to indicate every act that could lead to disciplinary action. The company reserves the right to determine the severity and extent of any disciplinary action based on the circumstances of each case.

Procedures

Disciplinary action is any one of a number of options used to correct unacceptable behavior or actions. Discipline may take the form of oral warnings, written warnings, probation, suspension, demotion, discharge, removal or some other disciplinary action, in no particular order. The course of action will be determined by the company at its sole discretion as it deems appropriate.

Termination

Employment with the company is on an at-will basis and may be terminated voluntarily or involuntarily at any time.

Upon termination, an employee is required:

- To continue to work until the last scheduled day of employment;
- To turn in all reports and paperwork required to be completed by the employee when due and no later than the last day of work;
- To return all files, documents, equipment, keys, access cards, software or other property belonging to the company that are in the employee's possession, custody or control, and turn in all passwords to his/her supervisor;
- To participate in an exit interview as requested by supervisor

Employee Health & Safety

Workplace Safety

The company takes every reasonable precaution to ensure that employees have a safe working environment. Safety measures and rules are in place for the protection of all employees. Ultimately, it is the responsibility of each employee to help prevent accidents. To ensure the continuation of a safe workplace, all employees should review and understand all provisions of the company's workplace safety policy. Employees should use all safety and protective equipment provided to them, and maintain work areas in a safe and orderly manner, free from hazardous conditions. Employees who observe an unsafe practice or condition should report it to a supervisor or [enter alternate name] immediately. Employees are prohibited from making threats against anyone in connection with his/her work or engaging in violent activities while in the employ of the company. Any questions regarding safety and safe practices should be directed to supervisor.

In the event of an accident, employees must notify a supervisor immediately. Report every injury, regardless of how minor, to a supervisor immediately. Physical discomfort caused by repetitive tasks must also be reported. For more information about on the job injuries, refer to the workers' compensation section of this handbook.

Employees should recognize any potential fire hazards and be aware of fire escape routes and fire drills. Do not block fire exits, tamper with fire extinguishers or otherwise create fire hazards.

Workplace Security

Employees must be alert and aware of any potential dangers to themselves or their coworkers. Take every precaution to ensure that your surroundings are safe and secure. Guard personal belongings and company property. Visitors should be escorted at all times. Report any suspicious activity to a supervisor immediately.

Emergency Procedures

In the event of an emergency, dial 911 immediately. If you hear a fire alarm or other emergency alert system, proceed quickly and calmly to the nearest exit. Once the building has been evacuated, only a supervisor may authorize employees to reenter.

Workers' Compensation

As required by law, the company provides workers' compensation benefits for the protection of employees with work-related injuries or illnesses.

Workers' compensation insurance provides coverage to employees who experience job-related injuries or illnesses. If an employee is injured or becomes ill as a result of his/her job, it is the employee's responsibility to immediately notify a supervisor of their injury in order to receive benefits. Report every illness or injury to a supervisor, regardless of how minor it appears. The company will advise the employee of the procedure for submitting a workers' compensation claim. If necessary, injured employees will be referred to a medical care facility. Employees should retain all paperwork provided to them by the medical facility. Failure to report a work-related illness or injury promptly could result in denial of benefits. An employee's report should contain as many details as possible, including the date, time, description of the illness or injury, and the names of any witnesses.

A separate insurance company administers the workers' compensation insurance. Representatives of this company may contact injured employees regarding their benefits under the plan. Additional information regarding workers' compensation is available from payroll department.

Termination Policies

Voluntary Termination

The company recognizes that personal situations may arise which require a voluntary termination of employment. Should this occur, the company requests that the employee provide **two weeks** advance notice in writing. This request does not alter an employee's at-will relationship with the company.

All rights and privileges of employment with the company terminate upon the date of separation. Terminating employees are required to return all company property assigned to them. Failure to do so may result in the withholding of their final paycheck.

Final Paycheck

Employees who provide two weeks advanced written notice to terminate employment with the company, then employee will be given their final paycheck on the next scheduled payday. Should the employee be unable to personally retrieve their paycheck, it will be mailed to the address on file.

For California employees:

If employee provided at least a two week advance written notice, then the employee is entitled to receive their final paycheck on the last day of employment if requested.

[See next page for Addendum A](#)

Sign here:

ADDENDUM A



PAID LEAVE POLICIES

Paid Time Off (PTO) requests must be put into Help Desk at least 2 weeks before the requested date(s). Please note that accrual of hours is based on the employee's **hire date and anniversary dates**, not the calendar year.

Vacation

Salaried Employees

- PTO accrues from an employee's hire date, up to 40 hours per year, unless otherwise agreed at the time of hire.
- Employees can accrue up to a maximum of 120 hours (3 weeks) of PTO (which would occur after 3 years of not taking any PTO). No further accrual will occur until at least 40 hours (1 week) of PTO is used.
- No more than 80 hours (2 weeks) of PTO can be taken at one time, even if additional hours have accrued.
- Unused accrued hours are payable only at the termination of employment, be it voluntary or involuntary. At no other time will accrued hours be paid out.

Hourly Employees

- There is no accrued PTO for the first year of employment.
- Starting year 2, employees can accrue up to 40 hours of PTO per year.
- Employees can accrue up to a maximum of 80 hours (2 weeks) of PTO (which would occur after 2 years of not taking any PTO). No further accrual will occur until at least 40 hours (1 week) of PTO is used.
- Unused accrued hours are payable only at the termination of employment, be it voluntary or involuntary. At no other time will accrued hours be paid out.

Sick Leave

- There is no paid sick leave for the first 90 days of employment.
- After 90 days, employee is given 24 hours of sick leave
- Sick leave continues to accrue to a maximum of 40 hours per year.
- Unused sick leave expires on your anniversary date. There is no rollover.
- 40 hours of sick leave will be front-loaded on employee's 1 year anniversary, and on every subsequent anniversary date.
- At no time will unused sick leave be paid out.

Jury Duty

The Fair Labor Standards Act (FLSA) does not require payment for time not worked, including jury duty. The states where Apartment Corp currently has properties also do not require payment for jury duty except for Louisiana, as noted below. Employees can choose to use accrued vacation hours or sick leave to respond to a jury summons, if these hours are available at the time of jury duty. If employee chooses not to use accrued hours, the time needed for jury duty will be unpaid.

Louisiana – Louisiana law requires employers to pay up to 1 day's wages for jury duty. For any additional days off needed, the employee can choose to use accrued vacation or sick time, if these hours are available at the time of jury duty. If the employee chooses not to use accrued hours, the time needed for jury duty will be unpaid.